



DECISION

Complaint No. : POS/2255/2025/F-30

Name and address of the complainant : Mr. Muhammad Nadeem Ahmed, Proprietor M/s. Nehari Inn, Shop No. SC-1, Plot No. FL-17, Sea Breeze Centre, Boat Basin, Block-5, Clifton, Karachi

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **ALLEGED INACTION ON THE COMPLAINTS MADE AGAINST ILLEGAL CONSTRUCTION ON SHOPS NO. SC-2, SC-3 AND SC-4, BREEZE CENTRE, BOAT BASIN CLIFTON, KARACHI.**

THE COMPLAINT:

Mr. Muhammad Nadeem Ahmed in his complaint stated that he is owner of Apartment No.D-10, Sea Breeze Centre, Plot No. FL-17, Block-5, Boat Basin, Clifton, Karachi along with its terrace having leasehold rights and running a business in the name of "Nehari Inn" in Shop No. SC-1, Sea Breeze Centre, Boat Basin, Clifton, Karachi, which is also owned by him. He alleged that the owner of Shops Nos. SC-2, SC-3 and SC-4 namely Sheikh Ahsan Elahi who is running "Dera Restaurant" has committed serious violations of the Sindh Building Control Ordinance, 1979 and Karachi Building & Town Planning Regulations, 2002 by illegally constructing a bathroom in Shop No. SC-2 without SBCA's approval, unlawfully extending the shop by about 4 feet beyond its sanctioned limits and erecting an additional structure therein and further by demolishing the dividing wall between Shops Nos.SC-3 and SC-4 without obtaining any NOC or revised building plan from SBCA which has weakened the complainant's terrace situated above these shops, thereby creating risk of collapse, thereby endangering human lives. He further alleged that despite several written complaints and applications to SBCA officials, no action has been taken against the illegal acts of Respondent. He therefore, solicited intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and the matter was taken up with the Director and Deputy Director, District South of Sindh Building Control Authority.
3. Hearings were fixed by issuing notices to Complainant and Respondents, which were attended by complainant, Deputy Director SBCA, Assistant Director SBCA and Respondent / owner of Dera Restaurant. The Representative of SBCA undertook to visit site and submit report.

4. The Deputy Director vide letter No.SBCA/D.D/District South/2025/883 dated 11.09.2025 states that (i) between Shop Nos. SC-3 & SC-4, the partition walls are not existing at site since long while Shop No. SC-2 exists in its original position; (ii) issue of placing any material outside the building boundaries and creating obstruction in the public passages does not pertain to the SBCA; and (iii) the complainant said the load of building is at partition walls, whereas, partition walls do not bear any load in a RCC Structure, the load are on RCC Structure of columns & beams, which are intact at site.

FINDINGS:

5. In 2019 a C.P. No. 5310 of 2019 was filed against the complainant and others by Shaikh Muhammad Ahsan Elahi. The said petition has now been decided by the Court on 03.03.2025. The present complaint has prima-facie no nexus with the issues agitated in decided petition.

6. It is concerning that the SBCA seems to be overlooking its own responsibility to act in accordance with their mandate and laws.

DECISION:

7. I, in exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date), hereby direct the Director General, Sindh Building Control Authority, Karachi to take necessary action in accordance with SBCA's law/rules/regulations and restore the approved design of shops within 45 days. I further direct the Municipal Commissioner, Karachi Metropolitan Corporation to ensure removal of encroachments from footpaths/curbsides to provide smooth access and flow to pedestrians.

Given under my hand and seal of office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh
Karachi, dated 29th October, 2025